

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X **SUMMONS**

SEFORA ARGUELLO,

Plaintiff,

Plaintiff designates Kings
County as the place of trial.

- against -

THE CITY OF NEW YORK, POLICE DETECTIVE
JOVANIEL CARDOVA, JOHN DOE 1-3 (POLICE
OFFICERS AS YET UNIDENTIFIED)

Defendants.

The basis of venue is:
The county in which the action
arose per CPLR 504(3)

The cause of action arose in
Kings County and is against
the City of New York

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner.

IN CASE OF YOUR FAILURE TO APPEAR OR ANSWER, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
June 26, 2019

DEFENDANTS' ADDRESS:

THE CITY OF NEW YORK
Division of Law, Rm 1225 South
1 Centre Street
New York, NY 10007

DETECTIVE JOVANIEL CARDOVA
One Police Plaza
New York, NY 10007

PLAINTIFF'S ATTORNEY:



Masai I. Lord, Esq.
Attorney for Plaintiff
233 Broadway, Suite 2220
New York, NY 10279
718-701-1002

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SEFORA ARGUELLO,

Plaintiff,

Index No.:

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE DETECTIVE
JOVANIEL CARDOVA, JOHN DOE 1-3 (POLICE
OFFICERS AS YET UNIDENTIFIED),

Defendants,

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Plaintiff, SEFPRA ARGUELLO, by his attorneys. LORD & SCHEWEL PLLC, alleges upon knowledge as to himself and his own actions, and upon information and belief as to all other matters, as follows:

PRELIMINARY STATEMENT

1. Plaintiff SEFORA ARGUELLO brings this action for compensatory damages, punitive damages, and attorney’s fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and all attendant New York state common law and statutes, for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.
2. That at all times hereinafter mentioned, the DEFENDANT THE CITY OF NEW YORK was a Municipal corporation duly existing under and by virtue of the laws of the State of New York and doing business in the State of New York.
3. That at all times hereinafter mentioned, the DEFENDANTS CARDOVA and JOHN DOES 1-3 were employees of the New York City Police Department, acting in their capacity as a police officers, and under color of law.
4. That all acts and incidents complained of herein occurred in Kings County, City, and State of New York.
5. That within 90 days after the state law claim of Malicious Prosecution accrued, Plaintiff served a Notice of Claim, in writing, sworn by the claimant, containing the name and post office address of the Plaintiff and Plaintiff’s attorney, the nature of the claim, the time when, the place where and the manner by which the claim arose, the items of damage and the injuries claimed to have been sustained, to be served upon the DEFENDANTS by delivering a copy thereof to the person designated by law as a person to whom such claims may be served.
6. That Plaintiff appeared for a hearing pursuant to §50-H of the General Municipal

Law on or about September 04, 2018.

7. That the DEFENDANTS have not adjusted, settled or paid the same.

8. That this claim has been commenced and this action has been started within one year and ninety days after the accrual of the state law violation upon which the New York state law claims are based.

9. That all conditions and requirements precedent to the commencement of this action have been complied with.

10. Pursuant to CPLR Section 1602(2)(iv), DEFENDANTS are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that DEFENDANTS owed the Plaintiff a non-delegable duty of care.

11. Pursuant to CPLR Section 1602(7), DEFENDANTS are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that DEFENDANTS acted with reckless disregard of the safety of others.

12. Pursuant to CPLR Section 1602(2)(iv), DEFENDANTS are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that DEFENDANTS are vicariously liable for the negligent acts and omissions of others who caused or contributed to the Plaintiff's damages.

13. That by reason of the foregoing, this Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

STATEMENT OF FACTS

14. On or about March 29, 2018 PLAINTIFF Sefora Arguello was sleeping when she heard a loud pounding on her door at about 5 A.M. in the morning. It sounded to her as if they were trying to kick down the door.

15. Four Officers were at the door, including DEFENDANT CARDOVA and JOHN DOES 1-3. The Officers told Plaintiff that they needed to come into the apartment.

16. Plaintiff refused to let them into the apartment. She asked for a search warrant that allowed them to enter.

17. DEFENDANT CARDOVA pushed the door open, saw Jaime Lopez walking out of the bathroom, grabbed him threw him to the floor and started punching him. While this was happening DEFENDANT also landed on Plaintiff's father's bed.

18. Plaintiff's entire family was awake and saw the vicious assault, in front of her eight year old son and disabled father.

19. None of the aforementioned acts were protected by legal privilege, nor were such acts legally justified. Said occurrence and the injuries and damages sustained by claimant were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.

20. Said occurrence and the injuries and damages sustained by claimants were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.

21. As a result of the DEFENDANTS' conduct, Plaintiff has been caused to suffer, *inter alia*, severe anxiety, humiliation, and embarrassment, damage to personal reputation, apprehension, fear and distrust of the police, emotional and psychological trauma, loss of income, and violation of rights under the U.S. and New York Constitutions, and applicable statutory and case law.

**FIRST CAUSE OF ACTION:
UNLAWFUL ENTRY UNDER STATE AND FEDERAL LAW**

22. Plaintiff repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

23. DEFENDANTS CARDOVA and JOHN DOE 1-3 entered the home of Plaintiff without a search warrant or an exigency. While inside the home, DEFENDANT CARDOVA participated in a brutal assault in front of children and Plaintiff's handicapped father.

24. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and their standing within their community.

25. As a result of DEFENDANTS' impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

**SECOND CAUSE OF ACTION:
FAILURE TO INTERVENE UNDER 42 U.S.C. 1983**

26. Plaintiff repeats and realleges each and every allegation as if fully set forth herein and he further alleges as follows.

27. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

28. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged

**THIRD CAUSE OF ACTION:
NEGLIGENT HIRING AND RETENTION**

29. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein, and he further alleges as follows.

30. DEFENDANT New York City are liable to Plaintiff because of its intentional, deliberately indifferent, careless, reckless, and/or negligent failure to adequately hire, train, supervise, retain and discipline its agents and/or employees employed by the New York City Police Department with regard to the duties described above.

31. The misconduct by DEFENDANT CARDOVA described above and below, in particular evidences the failure to adequately hire, train, supervise, retain and discipline the Department's officers.

32. Consequently, DEFENDANT City of New York are liable to Plaintiff for damages.

**FOURTH CAUSE OF ACTION:
NEGLIGENT AND INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

33. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein, and he further alleges as follows.

34. The DEFENDANT, THE CITY OF NEW YORK, including but not limited to DETECTIVE CARDOVA and JOHN DOES #1-3, acted intentionally, recklessly, and with utter disregard to the consequences of their actions and caused severe emotional distress to Plaintiff through their actions.

35. Such actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulting in severe emotional distress to Plaintiff.

36. That as a result of said intentional and negligent acts, the Plaintiff received serious injuries in diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish, and psychological trauma and was otherwise injured.

37. By reason of the foregoing, DEFENDANTS are liable to Plaintiff for damages.

**FIFTH CAUSE OF ACTION:
VIOLATIONS OF THE NEW YORK STATE CONSTITUTION**

38. Plaintiff repeats and realleges each allegation contained in the preceding paragraphs as if fully set forth herein and he further alleges as follows.

39. By virtue of the aforementioned acts, the Individual DEFENDANTS are liable to Plaintiff for violating his right to due process under Article I, § 6 of the New York State Constitution, and his right to be free of unreasonable and unlawful searches and seizures under Article I, § 12 of the New York State Constitution.

40. DEFENDANT THE CITY OF NEW YORK and the New York City Police Department are liable for these violations of the New York State Constitution under the principle of respondeat superior.

DAMAGES

41. As a direct and proximate cause of DEFENDANTS' actions and inactions, Plaintiff was deprived of his civil rights under the Fourth, Fifth, Sixth, and Fourteen Amendments of the United States Constitution and under the laws of New York.

42. This action seeks damages from on or prior to March 29, 2018 through the present.

43. Such acts and omissions of DEFENDANTS caused the following injuries and damages to Plaintiff which were foreseeable to DEFENDANTS at the time of the acts and omissions and which continue to date and will continue into the future:, pain and suffering, mental anguish, emotional distress, psychological damage, loss of relationships, loss of property, loss of companionship, loss of consortium, loss of guidance, loss of emotional and psychological development, humiliation, embarrassment, and degradation.

44. Such acts and omissions of DEFENDANTS entitle Plaintiff to compensatory and punitive damages above all courts of lower jurisdiction.

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the DEFENDANTS:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
June 26, 2019

Yours, etc.

Lord & Schewel PLLC



Masai I. Lord
Attorneys for Plaintiff
SEFORA ARGUELLO
233 Broadway, Suite 2220
New York, NY 10279
718-701-1002

ATTORNEY'S VERIFICATION

MASAI I. LORD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LORD & SCHEWEL PLLC, attorneys of record for Plaintiff SEFORA ARGUELLO. I have read the annexed SUMMONS and COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff are not presently in the county wherein I maintain my offices.

DATED: New York, New York
June 26, 2019



MASAI I. LORD
Counsel for Plaintiff